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|     |                                                                          | <p>Plaintiff is <b>ORDERED</b> to file and serve a revised proposed FAC omitting Plaintiff Barrera’s PAGA claim. The revised proposed FAC must be filed within 3 court days of this ruling and served on Defendant within 30 days of this ruling.</p> <p>Plaintiff shall give notice.</p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                             |
| 105 | <p><b>Vu vs. Pure Nails And Hair LLC</b></p> <p><b>2025-01498773</b></p> | <p><b>1.Motion for Leave to Amend/Demurrer</b></p> <p><b>2. Case Management Conference</b></p> <p>The motion technically on calendar is Defendants Pure Nails and Hair, LLC; Meridian Spa and Salon, LLC; Crest Spa and Salon, Inc.; Pure Nail Bar, LLC; and Recherchela, LLC’s motion for leave to amend its demurrer. This motion is <b>GRANTED</b>, and the amended demurrer is deemed timely filed on 3/25/2026.</p> <p><i>The Court also rules as follows on the substance of the amended demurrer:</i></p> <p>Defendants Pure Nails and Hair, LLC; Meridian Spa and Salon, LLC; Crest Spa and Salon, Inc.; Pure Nail Bar, LLC; and Recherchela, LLC’s demurrer to Plaintiff Thuy Vu’s complaint is <b>OVERRULED</b>. (Code Civ. Proc. [CCP], § 430.10, subds. (e), (f).)</p> <p>Defendants shall file and serve their answers, if any, within 14 days.</p> <p><b>Legal Standard</b></p> <p>On a demurrer, a complaint “must be liberally construed, with a view to substantial justice between the parties.” (CCP § 452; <i>see also Redfearn v. Trader Joe’s Co.</i> (2018) 20 Cal.App.5th 989, 996.)</p> <p>“A demurrer tests the legal sufficiency of the factual allegations in a complaint.” (<i>Redfearn v. Trader Joe’s Co.</i> (2018) 20 Cal.App.5th 989, 996.) The court must determine “whether the complaint alleges facts sufficient to state a cause of action or discloses a complete defense.” (<i>Ibid.</i>) The court assumes “the truth of the properly pleaded factual allegations, facts that reasonably can be inferred from those expressly pleaded[,] and matters of which judicial notice has been taken.” (<i>Ibid.</i>)</p> <p>All properly pleaded material facts, and reasonable inferences, must be accepted as true. (<i>Thomas v. Regents of University of Cal.</i> (2023) 97 Cal.App.5th 587, 611.) “As a general rule in testing a pleading against a demurrer[,] the facts alleged in the pleading are deemed to be true, however improbable they may be,” unless the “complaint contains</p> |

allegations of fact inconsistent with attached documents, or allegations contrary to facts which are judicially noticed.” (*Del E. Webb Corp. v. Structural Materials Co.* (1981) 123 Cal.App.3d 593, 604; *Dodd v. Citizens Bank of Costa Mesa* (1990) 222 Cal.App.3d 1624, 1627 [giving “precedence” to exhibits attached to the complaint if it contradicts the language of the complaint].)

“Questions of fact . . . cannot be decided on demurrer.” (*Berryman v. Merit Property Management, Inc.* (2007) 152 Cal.App.4th 1544, 1556.) Because a demurrer tests only the legal sufficiency of the complaint, “[a] court will not consider facts that have not been alleged in the complaint unless they may be reasonably inferred from the matters alleged in the complaint or are proper subjects of judicial notice.” (*Hall v. Great West Bank* (1991) 231 Cal.App.3d 713, 718, fn. 7.)

A complaint “ordinarily is sufficient if it alleges ultimate rather than evidentiary facts,” as “a plaintiff is required only to set forth the essential facts with particularity sufficient to acquaint a defendant with the nature, source, and extent of the plaintiff’s cause of action.” (*Thomas, supra*, 97 Cal.App.5th at pp. 610-611, internal quotes & citations omitted.) “A complaint will be upheld ‘so long as the pleading gives notice of the issues sufficient to enable preparation of a defense.’” (*Id.* at p. 611.)

Moreover, “less specificity is required in pleading matters of which the defendant has superior knowledge,” including “a defendant’s knowledge or notice or intent.” (*Ibid.*, internal quotes omitted.) “The particularity required in pleading facts depends on the extent to which the defendant in fairness needs detailed information that can be conveniently provided by the plaintiff; less particularity is required where the defendant may be assumed to have knowledge of the facts equal to that possessed by the plaintiff.” (*Doheny Park Terrace Homeowners Assn., Inc. v. Truck Ins. Exchange* (2005) 132 Cal.App.4th 1076, 1099.) “There is no need to require specificity in the pleadings because ‘modern discovery procedures necessarily affect the amount of detail that should be required in a pleading.’” (*Ibid.*)

Moreover, a demurrer must dispose of an *entire* cause of action to be sustained. (See *Quelimane Co. v. Stewart Title Guaranty Co.* (1998) 19 Cal.4th 26, 38-39 [complaint will survive demurrer if factual allegations state a cause of action under any legal theory]; *PH II, Inc. v. Super. Ct.* (1995) 33 Cal.App.4th 1680, 1683 [only a motion to strike, not a demurrer, can attack a portion of a cause of action].)

### **PAGA Representation**

First, Defendants contend that Plaintiff does not state facts sufficient to establish she is a proper PAGA representative. (ROA #95 at Exh. 4 [Dem. P&A], p. 5.) In essence, Defendants contend:

Plaintiff utilizes a prior and (now) incorrect standard for who qualifies as an “aggrieved employee.” Plaintiff states she “is an ‘aggrieved employee’ under the PAGA as she was employed by

Defendants...and suffered one or more of the Labor Code violations alleged herein.” Complaint, ¶ 25. With the passing of AB 2288 on June 19, 2024 (effective immediately), CLC § 2699(c)(1) was amended to define an “aggrieved employee” as one who “personally suffered each of the violations during the period prescribed” by statute, in addition (as previously) to being “employed by the alleged violator” during that period. (emphasis added).

(*Id.*)

While this “one or more” allegation is an accurate quote from ¶ 25 of the complaint, elsewhere in the complaint—including within each cause of action—Plaintiff explicitly alleges that Plaintiff *and* Aggrieved Employees all suffered each of the underlying violations for which the complaint seeks PAGA penalties. (ROA #2 [Compl.], ¶¶ 2-7, 9, 14, 28-85.) Therefore, this argument has no merit.

Defendants’ contrary argument—that “Plaintiff and the Aggrieved Employees” should be read in the disjunctive, and that paragraph 25 be treated as an admission that Plaintiff suffered only some of the violations—asks the Court to construe the pleading *against* the pleader and to draw an inference in Defendants’ favor. A demurrer does not permit that. At most, the phrasing creates an internal inconsistency, which is resolved in Plaintiff’s favor at this stage; and because a demurrer must dispose of an *entire* cause of action, an introductory paragraph’s “one or more” language does not defeat any of the seven causes of action, each of which alleges that Plaintiff suffered the violation at issue.

Defendants’ further assertion that Plaintiff was a salaried supervisor who did not personally experience the hourly-employee violations depends on a fact that appears nowhere in the complaint and is contrary to its allegations. The Court cannot consider it on demurrer, which is confined to the face of the pleading and matters subject to judicial notice. Whether Plaintiff actually suffered each violation is a factual dispute reserved for a later evidentiary stage.

Defendants also point out that in ¶ 73, Plaintiff alleges that “[a]dditionally, at all relevant times, Defendants failed to pay all mandated sick wages owed to the Aggrieved Employees at the proper rate of pay.” (Dem. P&A at p. 6, quoting Compl. ¶ 73.) Even if this allegation did not inadvertently omit the words “Plaintiff and” before “Aggrieved Employees,” Defendants’ demurrer would fail as to the 6th cause of action under which ¶ 73 appears because other allegations are sufficient to support this cause of action for PAGA penalties, and a demurrer must dispose of an entire cause of action.

Defendants also contend:

Plaintiff gives us no grounds to compare how the different Defendants treated her, or how she was treated in relation to those she claims to represent, to even begin analysis under Sec. 2699.

The Complaint, as mentioned, does not tell us what jobs Plaintiffs did for any Defendant. Plaintiff does not assert anything that substantively describes the other employers individually or as a group, other than to define them as: “all current and former nonexempt employees employed by Defendants in California within the last one year and 65 days.” Compl., ¶ 1. And all of Defendants’ complained of conduct is said to be visited uniformly on all Plaintiffs. *Id.*, ¶¶ 1, 4-11, 25, 29-30, 36, 38, 45, 49-51, 54, 59, 62, 67, 72, 76, 79, 81, 83.

. . . Either purposefully or through neglect, Plaintiff abstracts the allegations to such a level—by treating her and the Aggrieved Employees as a monolithic unit—that proving her adequacy as a representative is impossible.

(Dem. P&A at p. 6.) This argument also lacks merit and logical sense because, fairly read and as Defendants even acknowledge, the point is that the complaint alleges that all 5 employers treated Plaintiff and Aggrieved Employees “uniformly” in the same way with respect to all the alleged violations, regardless of job duties or job titles. At the pleading stage, these allegations of ultimate facts are sufficient and the Court must accept them as true, and Defendants cite no authority to the contrary.

Defendants further contend that amended section 2699, subdivision (c)(1)’s “employed by the alleged violator” requirement compels Plaintiff to plead entity-specific facts tying each of the five Defendants to her employment, and that collective “Defendants” allegations are insufficient. The governing pleading standard is to the contrary. A complaint is sufficient if it alleges ultimate rather than evidentiary facts, and “less particularity is required” where “the defendant has superior knowledge of the facts”—a doctrine that applies with particular force here, where the facts of common ownership, centralized control of labor relations, and unity of interest lie peculiarly within the affiliated entities’ possession. (*Doe v. City of Los Angeles* (2007) 42 Cal.4th 531, 549-550.) The wage-order definition of “employer” is, moreover, phrased in the alternative precisely to reach situations in which multiple entities control different aspects of the employment relationship. (*Martinez v. Combs* (2010) 49 Cal.4th 35, 64, 76.) The complaint alleges that each of the five Defendants was Plaintiff’s employer and pleads joint-employer and integrated-enterprise ultimate facts—joint direction and control, a common scheme, unity of interest and ownership, common management, centralized control of labor operations, and shared offices and website. (Compl., ¶¶ 15-19, 21-22.) That suffices at the pleading stage.

The authorities Defendants add in reply do not require more. *Henderson v. Equilon Enterprises, LLC* (2019) 40 Cal.App.5th 1111 was decided on summary judgment upon an undisputed evidentiary record showing that the third-party operator alone controlled wages, hours, and working conditions (*id.* at pp. 1114, 1116-1117, 1121); it says nothing about what must be *pleaded* to survive a demurrer. And *Amezcu v. Superior Court* (2026) 120 Cal.App.5th 116 holds only that Code of Civil Procedure section 473 does not authorize an award of attorney fees as a condition of

granting leave to amend; the court did not adjudicate the sufficiency of any joint-employer pleading. Neither supports sustaining this demurrer.

### **Uncertainty**

Defendants also demur to complaint as uncertain under CCP section 430.10, subdivision (f).

Uncertainty is a disfavored ground for demurrers because “ambiguities can be clarified under modern discovery procedures.” (*Khoury v. Maly’s of Cal., Inc.* (1993) 14 Cal.App.4th 612, 616.) Demurrers for uncertainty should be “granted only if the pleading is so incomprehensible that a defendant cannot reasonably respond.” (*A.J. Fistes Corp. v. GDL Best Contractors, Inc.* (2019) 38 Cal.App.5th 677, 695, internal quotes omitted.) Moreover, a demurrer for uncertainty must “specify in what particulars the complaint was uncertain.” (*Fenton v. Groveland Community Services Dist.* (1982) 135 Cal.App.3d 797, 809.)

Also, a “demurrer for uncertainty will not lie where the ambiguous facts alleged are presumptively within the knowledge of the demurring party.” (*Bacon v. Wahrhaftig* (1950) 97 Cal.App.2d 599, 605, quoting *Merlino v. West Coast Macaroni Mfg. Co.* (1949) 90 Cal.App.2d 106, 108.)

Defendants initially explain their “uncertainty” argument as follows:

The question of whether a defendant is a real party in interest, in this instance, an actual employer of the plaintiff, is a threshold question that must be dealt with before the merits are reached and discovery allowed. Because of her purposefully vague and high-level assertions that do not even attempt to explain the relationship or potential distinctions between these actual companies, Plaintiff utterly fails to establish that all five Defendants are “employers” within the definition of the CLC. This is a fatal defect even at the pleading stage.

(Dem. P&A at p. 6.) In short, Defendants contend that Plaintiff has failed to sufficiently allege that all 5 Defendants are Plaintiff’s employers.

But Defendants’ cited authorities do not support Defendants’ contention:

- *Rocha v. U-Haul Co. of California* (2023) 88 Cal.App.5th 65 held, in relevant part, that a PAGA claim may not be alleged against a defendant because an arbitrator had already found that the defendant committed no underlying Labor Code violations, and that finding had preclusive effect as against that defendant. (*Id.* at p. 69.) Here, there is no prior arbitration ruling entitled to preclusive effect. Therefore, *Rocha* is inapposite. Accordingly, it also does not help Defendants here to cite to *Adolph v. Uber Technologies, Inc.* (2023) 14 Cal.5th 1104, in which the court cited to *Rocha* for this uncontroversial “manner of proceeding” when there is an arbitration ruling that precedes further litigation in court.

- *Martinez v. Combs* (201) 49 Cal.4th 35 dealt with the question of whether certain defendants could be sued as plaintiff's "employers." (*Id.* at pp. 49-51.) But this issue arose in the context of employees, who were seasonal agricultural workers, suing *the produce merchants through whom their direct employer sold the produce*; thus, a legal question arose as to whether the direct employer's customers, in essence, could also constitute the plaintiffs' "employers" under applicable labor laws. (*Id.* at pp. 42-43.) There was no question in *Marinez* whether plaintiffs could sue *their direct employer*. (See *id.* at pp. 48-49.) Here, Plaintiff alleges all 5 Defendants were her *direct employers*; Plaintiff is not seeking to impose employer liability on *Defendants' customers*. Therefore, *Martinez* is also inapposite.
- For similar reasons, *Goonewardene v. ADP, LLC* (2019) 6 Cal.5th 817 is also inapposite, as it dealt with the issue of "whether, when an employer hires an independent payroll service provider (hereafter payroll company) to take over all the payroll tasks that would otherwise be performed by an internal payroll department, the employee may bring a civil action against not only his or her employer but against the payroll company as well." (*Id.* at p. 820.) Here, again, Plaintiff is seeking to sue her *direct employers*, not a third-party contractor of her direct employers.
- Likewise, *Reynolds v. Bement* (2005) 36 Cal.4th 1075, which involved the issue of whether corporate officers of plaintiff's employer may also be held personally liable as plaintiff's "employers," is equally inapposite, as Plaintiff is not suing any corporate officers here.

Here, Plaintiff alleges that all 5 Defendants directly employed her. (See Compl., ¶¶ 2, 14.) Plaintiff also alleges that Plaintiff "worked under the joint direction and control of Defendants"; Defendants "carried out a joint scheme, business plan or policy in all respect pertinent hereto"; and "a unity of interest and ownership between each Defendant exists such that all Defendants acted as a single employer of Plaintiff. . . ." (*Id.* at ¶ 21.) In addition, Plaintiff has also alleged that "Defendants, and each of them, are an integrated enterprise and should be treated as a single employer because these entities share an interrelation of operations, with common human resources and personnel policies and shared common offices and facilities. Additionally, Defendants also have a shared website, common management, a centralized control of labor operations, and common ownership or financial control." (*Id.* at ¶ 22.)

As the Court held in ruling on Defendants' similar motion for judgment on the pleadings in the related class action brought by Plaintiff against the same Defendants (i.e., *Vu v. Pure Nails and Hair LLC*, Case No. 2025-01488744 [*"Vu Class Action"*], which has been consolidated with the

instant case for pretrial purposes), these allegations are sufficient to state that Defendants were Plaintiff's joint direct employers.

At bottom, Defendants' argument is essentially that Plaintiff needs to allege "more specific" facts to support her joint-employer theories of liability. (Dem. P&A at p. 2; see also *id.* at p. 7 ["Without *at all* defining Defendants' various role or relative degree of involvement in any of the alleged conduct, Plaintiff's Complaint reads as a series of baldly stated alleged wage violations that are fatally ambiguous, unclear, and without basic factual specifics; it is ripe for a special demurrer for vagueness and uncertainty, and by extension a general demurrer for failure to state a valid claim. The allegations appear to have been lifted from some generic complaint, with no attempt to tailor them to this case. This violates basic principles of pleading."].)

However, as the Court explained in its ruling on Defendants' motion for judgment on the pleadings in the *Vu* Class Action:

However, a complaint "ordinarily is sufficient if it alleges ultimate rather than evidentiary facts," as "a plaintiff is required only to set forth the essential facts with particularity sufficient to acquaint a defendant with the nature, source, and extent of the plaintiff's cause of action." (*Thomas v. Regents of University of Cal.* (2023) 97 Cal.App.5th 587, 610-611, internal quotes & citations omitted.) "A complaint will be upheld 'so long as the pleading gives notice of the issues sufficient to enable preparation of a defense.'" (*Id.* at p. 611.)

Moreover, "less specificity is required in pleading matters of which the defendant has superior knowledge." (*Ibid.*, internal quotes omitted.) "The particularity required in pleading facts depends on the extent to which the defendant in fairness needs detailed information that can be conveniently provided by the plaintiff; less particularity is required where the defendant may be assumed to have knowledge of the facts equal to that possessed by the plaintiff." (*Doheny Park Terrace Homeowners Assn., Inc. v. Truck Ins. Exchange* (2005) 132 Cal.App.4th 1076, 1099.) "There is no need to require specificity in the pleadings because 'modern discovery procedures necessarily affect the amount of detail that should be required in a pleading.'" (*Ibid.*)

Plaintiff has alleged sufficient ultimate facts to support her joint-employer theories, and she is not required to allege more specific evidentiary facts under California state's pleading standards. Plaintiff's allegations are sufficient to put Defendants on notice of the nature, source, and extent of Plaintiff's claims. Plaintiff's allegations that Defendants "share an interrelation of operations, with common human resources and personnel policies and shared common offices and facilities," as well as allegations that "Defendants also have a shared website, common management, a centralized control of labor operations, and common ownership or financial control," are sufficiently specific under California state's pleading standards.

Defendants’ demurrer also included similar arguments aimed at specific causes of action. None of these arguments are persuasive either.

As to the 1st cause of action for PAGA penalties resulting from failure to pay minimum wages, Defendants contend:

To support her first one for the purported failure to pay minimum wages, Plaintiff baldly asserts that, “[Plaintiffs] were not provided proper minimum and regular wages due to the allegations herein.” Compl., ¶ 30. But what work was done by whom to earn such wages, or when, during regular hours or overtime, and for whom, goes unstated. The Complaint simply says Plaintiff and her nonexempt coworkers “were required to perform off-the-clock work” that Defendants knew or should have known about. *Id.*

(Dem. P&A at p. 8.) While Defendants acknowledge (*id.* at pp. 8-9) that the complaint at ¶ 3 also alleges that “[f]or example, Defendants frequently required Plaintiff and the Aggrieved employees to perform pre- and post-shift work without recording such time – leading to unpaid wages – such as picking up salon supplies and personally delivering cash to Defendants’ owners,” Defendants nevertheless contend this factual allegation is insufficient for the following reasons:

But Plaintiff cannot escape having to catalog actual unpaid or underpaid work (to show measurable damages) simply by giving an “example” and without telling Defendants anything about this purported conduct: who was told to perform these tasks, when, by whom, how long did they take, were these isolated requests, and what other “off-the-clock” work were Plaintiffs directed to do but not paid for? Without any further discussion of circumstances or known facts that might support this allegation, Plaintiff simply states that “Defendants violated California Labor Code laws and minimum wage laws.” *Id.*, ¶.31.

(Dem. P&A at p. 9.)

Defendants make a similar contention that Plaintiff is required to plead “the who, what, where, and how much . . . Plaintiffs respective accrued” to support Plaintiff’s 2nd cause of action based on failure to pay overtime wages. (*Id.*) Defendants also make similar arguments on the 3rd through 7th causes of action, sometimes acknowledging but also sometimes ignoring specific factual examples support the alleged violations contained in the complaint. (*Id.* at pp. 10-12; see also Compl. at ¶¶ 6-8.)

Yet Defendants also cite zero California state case law imposing such heightened pleading standards, which are only required as to fraud claims. (see, e.g., *Tenet Healthsystem Desert, Inc. v. Blue Cross of Cal.* (2016) 245 Cal.App.4th 821, 837-838, italics original [fraud claims subject to “particularity requirement [which] necessitates pleading facts which ‘show how, when, where, to whom, and by what means the representations were tendered’”].)



In short, while Defendants characterize these arguments as based on “uncertainty,” the complaint is simply not so incomprehensible that Defendants cannot reasonably respond. Defendants essentially dispute that all 5 of them engaged in such conduct, but that does not mean the complaint is uncertain.

Finally, also under the general heading of “uncertainty,” Defendants contend that Plaintiff’s PAGA claims for Defendants’ violations of Labor Code sections 201-203 (6th cause of action) and Labor Code section 226 (7th cause of action) fail because Plaintiff did not allege Defendants’ violations were willful, knowing, or intentional or willful. (Dem. P&A at pp. 12-13 & fn. 2 [acknowledging that the willfulness requirement of Section 203 and the knowing and intentional requirement of Section 226 are substantively the same, citing *Naranjo v. Spectrum Security Services, Inc.* (2024) 15 Cal.5th 1056, 1079-1080.)

On the 6th cause of action, Defendants contend that “nowhere does [Plaintiff] allege the actual conduct supporting her Sixth . . . COA[ was] intentional.” (*Id.* at p. 13.) This argument is ironic, especially in light of Defendants’ arguments about the alleged deficiencies of Plaintiff’s other allegations where Plaintiff used some of the words found in statutory language. Here, Plaintiff does not simply parrot Section 203’s language by using the term “willfully”; instead, Plaintiff alleges that “at all times material to this action, Defendants had a planned pattern and practice of failing to timely pay Plaintiff and the Aggrieved Employees all wages due and owing upon separation of employment as required by Labor Code §§ 201 and 202.” (Compl., ¶ 76.) It can be reasonably inferred that if Defendants “planned” a pattern and practice, Defendants willfully, knowingly, and/or intentionally engaged in the alleged violations. Thus, this allegation is sufficient.

On the 7th cause of action, Plaintiffs correctly contend that “a plaintiff seeking civil penalties under PAGA for a violation of section 226(a) does not have to satisfy the ‘injury’ and ‘knowing and intentional’ requirements of section 226(e)(1).” (*Lopez v. Friant & Associates, LLC* (2017) 15 Cal.App.5th 773, 788; see also *Kim v. Reins International Cal., Inc.* (2020) 9 Cal.5th 73, 86.) Therefore, Plaintiff’s failure to allege that Defendants’ violation of Section 226 was knowing and intentional does not defeat Plaintiff’s 7th cause of action for PAGA penalties based on Defendants’ alleged violation of Section 226.

Defendants’ final citation to legal authority in its demurrer is telling (Dem. P&A at p. 13, citing *Jacobs v. Sustainability Partners, LLC* (N.D. Cal. Sept. 18, 2020, No. 20-cv-01981-PJH) 2020 WL 5593200, at \*12): It demonstrates the ultimate problem with Defendants’ demurrer—that Defendants seek to apply stricter federal court pleading standards, even though the instant case is governed by California state’s traditional notice pleading standards. (See *Thomas, supra*, 97 Cal.App.5th at p. 618, fn. 2.)

Plaintiff shall give notice.